

Metropolitan Planning Commission - September 3rd, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=81tIH_rVp-E
Publication Date	2026-09-03T23:54:14Z
Target Category	delaware_county

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Delaware Metropolitan Plan Commission Meeting Report

Meeting Date: September 2026 (Regular Meeting)

Body: Delaware Metropolitan Plan Commission (DMMPC)

1. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the meeting to order [00:15:26](#), initiated the Pledge of Allegiance [00:15:29](#), and conducted a roll call to confirm a quorum [00:15:56 – 00:16:32].
- **Attendance:**
 - **Members Present:** Steven Brand, Nate Carroll, Richard Ivy, Emily Cring, Owen Lache, and Ricky Cip.
 - **Members Absent:** Tom Borchers, Jerry Dishman, Teresa Hensley, Jesse Landis, Adam Leach, and Chris Smith. *(Note: While Jerry Dishman's absence was noted during the initial roll call, he was subsequently recorded as voting on items throughout the meeting.)*

- **Presiding Officer:** Not explicitly named in the opening transcript, but leading the proceedings.

2. Preliminary & Procedural Business

- **Ceremonial Openings:** Recitation of the Pledge of Allegiance led by the presiding officer [00:15:29](#).
- **Approval of Minutes:**
 - **Item:** Approval of August 2026 meeting minutes [00:16:35](#).
 - **Action & Vote Disposition:** Passed with a roll call vote of 6-0 (Brand: Yes, Dishman: Yes, Ivy: Yes, Lache: Yes, Cip: Yes, Carroll: Yes) [00:17:22 – 00:17:39].

3. Substantive Business & Board Action

[00:18:23](#) BZA 55-26: Special Use Variance for Accessory Dwelling Unit

- **Sponsor / Presenter:** Deborah A. Harden (Applicant) / Kimberly Green (Daughter)
- **Deliberation Summary:** Applicant requested a special use variance to allow a new accessory dwelling unit (ADU) in an R3 residence zone at 3410 North New York Avenue. Staff clarified that ADUs are permitted in R3 zones via special use, provided they are not less than 300 square feet and satisfy parking requirements (two spaces per dwelling). Discussion touched on utility access, full plumbing, and setbacks.
- **Item-Specific Public Input:**
 - [00:18:56](#) **Deborah Harden** (3410 N. New York Ave.) spoke in support, citing medical issues (tinnitus, vertigo, fibromyalgia) and the desire to build a small house on her property so her daughter and family can move into the main house to assist her and support her grandson's college education.
 - [00:17:37](#) **Kimberly Green** (1410 W. Berkeley Ave., daughter) spoke in support, confirming financial hardship and medical needs.
 - [00:33:30](#) **Eva Harold** (459 N. Reading Rd., mother of applicant) spoke in support.
- **Action & Vote Disposition:** Approved with a favorable recommendation to the Board of Zoning Appeals by roll call vote 6-0 (Brand: Yes, Dishman: Yes, Ivy: Yes, Lache: Yes, Cip: Yes, Carroll: Yes) [00:27:01 – 00:27:33]. Hearing scheduled for September 24th.

[00:28:18](#) BZA 65-26: Special Use Variance for In-Home Nail Salon

- **Sponsor / Presenter:** Leslie Anne Ginder (Applicant) / Eva Harold
- **Deliberation Summary:** Applicant requested a special use variance to operate an in-home nail salon (part-time, 1–2 days a week, regular business hours 9:00 a.m. to 4:00 p.m.) within a mother-in-law suite at 2900 West Petty Road (R3 residence zone). The

applicant noted no exterior signage, client appointments scheduled one at a time, and adequate side-by-side driveway parking for up to six cars.

- **Item-Specific Public Input:**

- **00:28:40 Leslie Ginder** (2900 W. Petty Rd.) spoke in support, noting her 33 years as a cosmetologist and the need to offset college expenses for her child attending Rose-Hulman.
- **00:33:30 Eva Harold** (459 N. Reading Rd.) spoke in support of her hardworking daughter.

- **Action & Vote Disposition:** Approved with a favorable recommendation to the Board of Zoning Appeals by roll call vote 6-0 (Ivy: Yes, Lache: Yes, Cip: Yes, Brand: Yes, and two additional affirmative votes) [00:34:15 – 00:34:52]. Hearing scheduled for September 24th.

00:35:25 MPC 06-26A: Comprehensive Zoning Ordinance Text Amendment (McKinley Neighborhood Overlay)

- **Sponsor / Presenter:** Jill Robertson, Rachel Robertson, Bruce Rector, and Bill Inman (McKinley Neighborhood Association representatives).
- **Deliberation Summary:** Consideration of a revised text amendment to establish an overlay district in the McKinley neighborhood. Staff reviewed the history: initially received a favorable recommendation in June, passed City Council in July, and was subsequently vetoed by the deputy mayor/acting executive. Proponents presented updates addressing state law changes, utility burial requirements (changed from mandatory to encouraged), sustainability items, accessory dwelling units, and strengthened homeowner protections.

Extensive board and public debate centered on jurisdictional authority, whether the McKinley Neighborhood Review Committee (MNRC) serves an advisory vs. approval role, consistency with other city overlays (Village and White River Canal), and potential impacts on current building permit holders (such as developer Derek Snyder).

- **Item-Specific Public Input:**

- **00:36:31 Jill Robertson** (608 N. Elm St.) presented the revised overlay changes.
- **00:38:44 Bruce Rector** (627 N. Elm St., President, McKinley Live Learn Neighborhood Association) spoke in support.
- **00:39:12 Rachel Robertson** (608 N. Elm St., Vice President, Neighborhood Association) spoke in support of community engagement and homeowner protections.
- **00:41:15 Bill Inman** (654 N. Elm St.) spoke in support, emphasizing predictability and neighborhood character. Later spoke regarding committee authority and draft language consistency **01:49:18**.

- **00:55:59 Bruce Rector** (speaking as a resident) shared personal reflections and urged passage **00:55:59**.
 - **01:02:07 Derek Snider** (Developer holding active permits/lots) raised questions regarding timelines for forming the MNRC and potential administrative purgatory or permit challenges.
 - **01:17:17 Annie Swingley** (420 E. Elm St.) inquired about grandfathering and property changes under the overlay.
 - **01:13:16 Jerry Malone** (647 N. Jefferson St.) inquired about local helicopter/plane activity related to flooding.
 - **01:15:06 Bill Tavvis** (315 E. Columbus) provided clarification on waiver provisions and drafting intent.
- **Action & Vote Disposition:** Approved by voice vote / motion to **continue** the item to the next monthly meeting (October 1st) to allow staff and proponents time to resolve jurisdictional language, MNRC authority, enforcement standards, and property protections [01:53:01 – 00:55:06].

4. Open Public Comment / Citizen Forum

General floor comments were integrated into the substantive public hearing for Item MPC 06-26A above.

5. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - **Permit & Inspection Statistics:** Year-to-date through August: 609 permits issued, 1,169 inspections completed, and 90 total committee cases.
 - **Ordinance Update:** Progress report on the educate phase with consulting firm American Structure Point, noting upcoming stakeholder meetings scheduled for late September.
 - **Scam Alert Warning:** Staff warned applicants regarding fraudulent scam emails requesting online payments for zoning approvals and variances.
 - **Hearing Officer (HOSA) Discussion:** Staff briefly introduced documentation regarding hearing officer procedures to handle minor BZA volume (noting 70 BZA cases year-to-date compared to regional averages like Richmond's 18), left for board review.
 - **Board Recognition:** Board members recognized Steven Hines for his active participation on the BZA and planning commission meetings **02:02:09**.
- **Next Meeting Date:** October 1st at 6:00 p.m. in the same room **01:55:06**.

- **Adjournment:** Meeting business concluded following the continuation vote and director's report.

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